IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 314
CA.CAA-2(ND)/2024

IN THE MATTER OF:

Veekay Surgicals Pvt. Ltd. .... Petitioner/Applicant

Vs.

Pavi Tradex Pvt. Ltd. .... Respondent

Order u/S. 230-232

Order delivered on 08.04.2024

CORAM:
SH. BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

SH. ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

Ld. Counsel appearing on behalf of the applicant has stated that in compliance with the order dated 26.02.2024, a revised chart has been filed on 30.03.2024.

We have heard the submissions made by the Ld. Counsel appearing for the Applicant and perused the contents of the application as well as chart submitted by the Applicant.

It is submitted that there are 6 Equity Shareholders in the Demerged/Petitioner No. 1 Company and they have given their No Objection Certificates to the Scheme of Arrangement and, therefore, meeting of Equity Shareholders of the Petitioner No. 1 Company is dispensed with.

The Demerged/ Petitioner No. 1 Company has 1 Secured Creditor and they have given their No Objection Certificates to the Scheme of Arrangement and, therefore, meeting of Secured Creditor of the Petitioner No. 1 Company is dispensed with.

The Demerged/ Petitioner No. 1 Company has 4 Unsecured Creditors from which financial Loan facilities have been availed and there are 24 Trade Creditor of the Demerged Company. Therefore, in total there are 28 Unsecured Creditors. However, 25 unsecured creditors out of 28 unsecured creditors and in value more than 92% of total debt amount, have given their No Objection Certificates to the Scheme of Arrangement and, therefore, meeting of unsecured creditors of the Demerged Company is dispensed with.

The Resulting Company/Petitioner No.2 has Nil secured and unsecured Creditors nor have any Trade Creditor therefore, the necessity of convening the meeting of the Secured and Unsecured Creditors of the Resulting Company does not arise.

The application **CA(CAA)/2(ND)2024** is disposed of with above terms.

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Ajay